REVENUE AND FOREST DEPARTMENT

Madam Cama Marg, Hutatma Rajguru Chowk, Mantralaya,
Mumbai 400 032, dated the 30th January, 2024.

NOTIFICATION

MAHARASHTRA PAYMENT OF COMPENSATION FOR LOSS, INJURY OR DAMAGE CAUSED BY WILD ANIMALS ACT, 2023.

No.WLP-02.23/C.R.52(Part-I)/F-1.– In exercise of the powers conferred by sub-section (*2*) of section 1 of the Maharashtra Payment of Compensation for Loss, Injury or Damage Caused by Wild Animals Act, 2023 (Mah. Act No. XXXVII of 2023), the Government of Maharashtra hereby appoints the 1st February, 2024 to be the date on which the provisions of the said Act shall come into force.

By order and in the name of the Governor of Maharashtra,

VIVEK HOSHING,
Deputy Secretary to Government.

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

REVENUE AND FOREST DEPARTMENT

Madam Cama Marg, Hutatma Rajguru Chowk, Mantralaya,
Mumbai 400 032, Dated the 30th January, 2024.

NOTIFICATION

MAHARASHTRA PAYMENT OF COMPENSATION FOR LOSS, INJURY OR DAMAGE CAUSED BY WILD ANIMALS ACT, 2023.

No. WLP-02.23/CR.52(Part-II)/F-1.— In exercise of the powers conferred by sub-section (*1*) of section 8 of the Maharashtra Payment of Compensation for Loss, Injury or Damage Caused by Wild Animals Act, 2023 (Mah. XXXVII of 2023), the Government of Maharashtra hereby makes the following rules, namely :–

1. *Short title*.— These rules may be called the Maharashtra Payment of Compensation for Loss, Injury or Damage Caused by Wild Animals Rules, 2023.

2. *Definitions*.- (1) In these rules, unless the context otherwise requires,—

(*a*) "Act" means the Maharashtra Payment of Compensation for Loss, Injury or Damage Caused by Wild Animals Act, 2023 (Mah. XXXVII of 2023);

(*b*) "Family" means wife, husband, children, mother or father of a victim;

(*c*) "Form" means the Form appended to these rules.

(2) Words and expressions used but not defined in these rules shall have the same meanings as are respectively assigned to them under the Act.

3. *Other types of injuries or damages*.— In addition to types of injuries or damages caused due to attack of wild animal provided in sub-section (*2*) of section 3 of the Act, the State Government shall also pay compensation under the said Act for minor injury to humans caused due to attack of wild animal.

4. *Sanctioning Authority*.— The Assistant Conservator of Forest having jurisdiction over the area where incident of attack of wild animal has occurred shall be the Sanctioning Authority for the purposes of the this Act.

5. *Procedure for payment of compensation in case of loss of human life and injury to humans.*—

(1) *In case of loss of human life*.—

(*a*) An intimation about the loss of human life due to attack of wild animal shall be given immediately in writing by any person to the nearest Forest Guard. After receipt of such intimation, the Forest Guard shall confirm whether such incident has occurred and gather information of the incident and report the facts to the concerned Forester and Range Forest Officer immediately.

(*b*) In such cases an application for compensation payable under the Act shall be made by the legal heirs of the deceased to the concerned Range Forest Officer in Form I within forty-eight hours of such incident.

(*c*) The Range Forest Officer, on receipt of such application under clause (b) shall visit the spot of incident and conduct necessary inquiry within three days from the date of receipt of such application. The Range Forest Officer shall make a *Panchnama* after such inquiry.

(*d*) In such cases, the post mortem shall be carried out by the Medical Officer. The Medical Officer shall after the post mortem, forward a post mortem report to the concerned officer.

(2) *In case of permanent disability, major or minor injury to humans*.—

(*a*) In case of permanent disability, major or minor injury to humans caused due to attack of wild animal, an application for the compensation payable under the Act shall be made in Form I, by the injured person himself or any other person from his family to the Range Forest Officer having jurisdiction over the area where such attack has occurred, within forty-eight hours of such incident. The applicant shall also submit alongwith such application a medical certificate of examination of the victim conducted by the Medical Officer.

(*b*) The Range Forest Officer shall, on receipt of an application under clause (a), direct the Forester to visit the spot and conduct necessary inquiry within three days from the date of receipt of such application. The Forester shall draw a *Panchnama* after such inquiry. The Forester shall submit his report alongwith a *Panchnama* to the Range Forest Officer.

(3) The Range Forest Officer shall, after receipt of the report of the Forester, forward the application alongwith his specific recommendation to the Assistant Conservator of Forest within twenty days of the receipt of application complete in all respects.

(4) The injured or deceased person shall not be eligible for receipt of any compensation if the incident of attack by wild animal has taken place while the concerned person is contravening any of the provisions of the Wild Life (Protection) Act 1972 (53 of 1972) or any rules made thereunder.

6. *Payment of compensation in case of loss of human life*.—

(*1*) In case the deceased is an adult, the payment of compensation shall be as follows, namely :—

(*a*) If the spouse of the deceased is alive, the spouse and children shall be given equal share.

(*b*) If the spouse is not alive,—

(*i*) the compensation shall be equally divided amongst all the surviving children if all are major;

(*ii*) if the child is minor, then his share of the amount of compensation shall be deposited into an account opened in the joint name of such minor and the concerned Deputy Collector. Such deposited amount of compensation shall be paid to such minor child after he attains the age of eighteen years.

(c) If the spouse and children of the deceased are not alive, the amount of compensation shall be paid to the parents of the deceased.

(*2*) In case the deceased is a minor, the payment of compensation shall be as follows, namely :—

(*a*) the amount of compensation shall be paid to the parents of the deceased.

(*b*) if the parents are not alive, the siblings of the deceased shall be given equal amount. If the siblings are minor, then the provisions of sub-clause (ii) of clause (b) of sub-rule (1) shall, *mutatis mutandis* apply.

(3) If any dispute arises in respect of the legal heirs of the deceased, the amount of compensation shall be paid only after submitting the succession certificate.

(4) The forty per cent. of the compensation amount shall be deposited in the account of the person to whom it is awarded by the Sanctioning Authority and sixty per cent. of the compensation amount shall be deposited in monthly interest bearing fixed deposit account of such person for ten years. After ten years on maturity of fixed deposit, the amount in such account shall be paid to such person.

(5) The amount in the fixed deposit may be withdrawn with prior approval of the Sanctioning Authority for critical illness, educational purposes and marriage of member of the family of the victim.

7. *Procedure for payment of compensation in case of loss of cattle life or injury to cattle*.—

(*1*) In case of loss of cattle life or injury to cattle, the owner of the cattle shall make an application within forty-eight hours in Form II for claiming compensation to the concerned Range Forest Officer having jurisdiction over the area.

(*2*) The owner of the cattle shall take care that he or any person shall not move the carcass of the cattle from the spot of the incident till inspection is carried out by Forester, otherwise he shall not be eligible for compensation.

(*3*) The Range Forest Officer shall, on receipt of an application under clause (a), direct the concerned Forester to visit the spot and conduct necessary inquiry within three days from the date of receipt of such application. The Forester shall draw a *Panchnama* after such inquiry.

(*4*) The Forester shall get the deceased or injured cattle examined by the Government Veterinary Officer. The Government Veterinary Officer shall, after examination of the deceased or injured cattle, give Medical Certificate to the Forester after recording specific observations whether death or injury of cattle is caused by wild animal or not. The Forester shall submit his report alongwith a *Panchnama* and such Medical Certificate to the Range Forest Officer.

(*5*) The Range Forest Officer shall, after receipt of report of the Forester, assess the market value of the cattle. The Range Forest Officer shall forward the application and all necessary documents alongwith his specific recommendations to the Assistant Conservator of Forests within twenty days of receipt of application complete in all respects.

(*6*) If the cattle has entered any area of the National Park or Sanctuary where entry of such cattle is prohibited and is killed by wild animal in such area, then the applicant shall not be eligible for compensation under the Act.

(*7*) If any wild animal dies due to poisoning within six days from the date of incident in the radius of ten kilometers from the place of incident, then the cattle owner of such animal shall not be eligible for receipt of the compensation under the Act.

8. *Procedure for payment of compensation in case of damage to crops and fruit plants or damage to property*.—

(*1*) In case of damage to the crops or fruit plants, the owner shall make an application within seventy-two hours in Form III for compensation payable under the Act to the concerned Range Forest Officer having jurisdiction over the area where such attack has occurred.

(*2*) In case of damage to crops or fruit plants, the Committee comprising of Forest Guard, Agriculture Assistant and Talathi of the area shall jointly inspect the farm and assess the quantum of damage due to wild animal and prepare a report and submit it to the Range Forest Officer within ten days from the date of receipt of an application.

(*3*)In case of damage to the property by wild elephant, the owner shall make an application within seventy-two hours in Form III for compensation payable under the Act to the concerned Range Forest Officer having jurisdiction over the area where such attack has occurred.

(*4*) In case of damage to property by wild elephant, the Committee comprising of the Range Forest Officer, Junior Engineer of Public Works Department and Talathi or Gramsevak of that area shall inspect and assess the damage and draw a *Panchnama* within ten days from the date of receipt of an application. In such incident, the applicant shall not remove anything or modify the scene of incident or carry out any work of repair till the *Panchnama* and assessment of damage is completed by the Committee.

(*5*) The Range Forest Officer shall, after receipt of report of the Committee referred in sub-rules (*3*) and (*4*), as the case may be, immediately forward the application and report of such Committee alongwith his specific recommendations to the Assistant Conservator of Forest.

(*6*) The compensation shall not be payable in respect of the following cases, namely :—

(*a*) if the cultivation land is an un-regularized encroachment on forest land;

(*b*) if the owner of the land or cultivator has committed any offence under the Indian Forest Act, 1927 (16 of 1927) or the Wild Life (Protection) Act, 1972 (53 of 1972) within last three years from the date of incident.

9. *Rate of Interest*.— If the payment of compensation is delayed beyond thirty days from the date of receipt of application complete in all respects by the Range Forest Officer, interest at the rate of six per cent. per annum of amount of compensation shall be payable along with amount of compensation.

FORM I

(*See* rule 5)

APPLICATION FOR CLAIMING COMPENSATION IN CASE OF LOSS OF HUMAN LIFE, PERMANENT DISABILITY, MAJOR OR MINOR INJURY TO HUMANS

To

The Range Forest Officer, ————————————

1. Full name of the applicant :
2. Address :
3. Relationship with the victim :
4. Mobile No. :
5. Aadhaar No.* :
6. Gender :
7. Age :
8. Marital Status* :
9. Name(s) of legal heirs in case of loss of human life:
10. Details of the Bank Account* :
    (*a*) Account Holder's Name :
    (*b*) Account Number :
    (*c*)Name of the Bank :
    (*d*) IFSC Code :
11. Type of Injury (Strike out whatever not applicable)
    (*a*) Loss of human life :
    (*b*) Permanent disability to humans:
    (*c*) Major injury to humans:
    (*d*) Minor injury to humans:
12. Details of the Incident :
    (*a*) Location of the incident :
        (*i*) Village :
        (*ii*) Taluka :
        (*iii*) District :
    (*b*) Date and time of the incident :
    (*c*) Wild animal due to which death or injury is caused :
    (*d*) Any other relevant information :

Signature of Applicant.

*Relevant documents need to be submitted.

FORM II

[*See* rule 7(*1*)]

APPLICATION FOR CLAIMING COMPENSATION IN CASE OF LOSS OF CATTLE LIFE OR INJURY TO CATTLE

To

The Range Forest Officer, ————————

1. Full name of the applicant :
2. Address :
3. Mobile No. :
4. Aadhaar No.* :
5. Gender :
6. Age :
7. Details of the Bank Account* :
   (*a*) Account Holder's Name :
   (*b*) Account Number :
   (*c*) Name of the Bank :
   (*d*) IFSC Code :
8. Type of Loss / Injury (Strike out whatever not applicable)
   (*a*) Loss of cattle life :
   (*b*) Injury to cattle :
9. Details of the Incident :
   (*a*) Location of the incident :
      (*i*) Village :
      (*ii*) Taluka :
      (*iii*) District :
   (*b*) Date and time of the incident :
   (*c*) Type and number of cattle :
   (*d*) Wild animal due to which injury is caused :
   (*e*) Any other relevant information :

Signature of Applicant.

*Relevant documents need to be submitted.

FORM III

(*See* rule 8)

APPLICATION FOR CLAIMING COMPENSATION IN CASE OF DAMAGE TO CROPS AND FRUIT PLANTS OR PROPERTY BY WILD ELEPHANTS

To

The Range Forest Officer, ————————

1. Full name of the applicant :
2. Address :
3. Mobile No. :
4. Aadhaar No.* :
5. Gender :
6. Age :
7. Details of the Bank Account* :
   (*a*) Account Holder's Name :
   (*b*) Account Number :
   (*c*) Name of the Bank :
   (*d*) IFSC Code :
8. Type of Damage (Strike out whatever not applicable)
   (*a*) damage to crops, fruit plants
   or
   (*a*) damage to property due to wild elephant
9. Details of the Incident :
   (*a*) Land details* :
      (*i*) Village :
      (*ii*) Taluka :
      (*iii*) District :
   (*b*) Date of the incident :
   (c) Type of crop / fruit plants and age of fruit plants :
   or
   (*c*) Details of property:
   (*d*) Any other relevant information :

Signature of Applicant.

*Relevant documents need to be submitted.

By order and in the name of the Governor of Maharashtra,

B. VENUGOPAL REDDY,
Principal Secretary to Government.

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

REVENUE AND FORESTS DEPARTMENT

Mantralaya, Madam Cama Marg, Hutatma Rajguru Chowk,
Mumbai 400 032, dated the 30th January, 2024.

NOTIFICATION

MAHARASHTRA PAYMENT OF COMPENSATION FOR LOSS, INJURY OR DAMAGE CAUSED BY WILD ANIMALS ACT, 2023.

No. WLP-02.23/CR-52(Part-III)/F-1.– In exercise of the powers conferred by sub-section (*1*) of section 3 of the Maharashtra Payment of Compensation for Loss, Injury or Damage Caused by Wild Animals Act, 2023 (Mah. XXXVII of 2023), the Government of Maharashtra hereby specifies the rates of compensation payable under the said Act for the loss of human life or injuries to humans and cattle or damage to crops, fruit plants and property caused due to attack of wild animal as follows, namely :–

1. The rate of compensation payable for loss of human life or any injury to human caused due to attack of tiger, leopard, bear, bison, wild pig, jackal, hyena, fox, crocodile, elephant, wild dog, deer, nilgai, monkey or langur, shall be as follows :–

Table

Sr. Nos.	**Type of injury**	**Rate of compensation**
(1)	**(2)**	**(3)**
(1)	Loss of human life.	Rupees twenty five lakhs.
(2)	Permanent Disability to human.	Rupees seven lakh and fifty thousand.
(3)	Major injury to human.	Rupees five lakhs.
(4)	Minor injury to human.	In case treatment is done in private hospital the cost of treatment or rupees fifty thousand only, whichever is less.

2. The rate of compensation payable for loss or injury to the cattle caused due to attack of tiger, leopard, bear, bison, wild pig, jackal, hyena, fox, crocodile, elephant or wild dogs shall be as follows :–

Table

Sr. Nos.	**Type of Livestock (Domestic Animal)**	**Rate of compensation**
(1)	**(2)**	**(3)**
(1)	Loss of cow, buffalo or bullock.	Seventy five per cent. of market price of cattle or rupees seventy thousand only, whichever is less.
(2)	Loss of sheep, goats and other livestock defined in clause (*18A*) of section 2 of the Wild Life (Protection) Act, 1972 (53 of 1972) .	Seventy five per cent. of market price of cattle or rupees fifteen thousand only, whichever is less.
(3)	Permanent disability to cow, buffalo or bullock.	Fifty per cent. of market price of cattle or rupees fifteen thousand only, whichever is less.
(4)	Injury to cow, buffalo, bullock, sheep, goat or other livestock.	Medical expenses incurred for treatment of injured cattle shall be paid. Treatment of injured cattle shall be taken in Government or *Zilla Parishad* veterinary hospital. Amount payable shall be limited to twenty five per cent. of the market price of cattle or rupees five thousand only, whichever is less.

3. The rate of compensation payable for damage to crops caused due to attack of wild pig, deer, bison, nilgai, monkey, langur or elephant, shall be as follows :–

Table

Sr. Nos. (1)	Details of damages (2)	Rate of compensation (3)
(1)	Crop damage upto rupees twenty thousand in each case.	Full cost of damage, but not less than rupees two thousand only.
(2)	Crop damage exceeding rupees twenty thousand in each case.	Rupees twenty thousand plus eighty per cent. of the amount above rupees twenty thousand, subject to maximum limit of rupees fifty thousand only.
(3)	Damage to sugarcane crop in each case.	Rupees sixteen hundred per metric ton, subject to a maximum limit of rupees fifty thousand only.

4. The rate of compensation payable for damage to fruit trees caused due to attack of wild pig, deer, bison, nilgai, monkey, langur or elephant, shall be as follows :–

Table

Sr. Nos. (1)	Species and age of tree. (2)	Rate of compensation per tree. (3)
(1)	Coconut tree,- (i) upto one year,	Rupees five hundred only.
	(ii) above one year and upto two years,	Rupees one thousand only.
	(iii) above two years and upto three years,	Rupees three thousand only.
	(iv) above three years and upto four years,	Rupees five thousand only.
	(v) above four years and upto five years,	Rupees seven thousand and five hundred only.
	(vi) above five years.	Rupees nine thousand and five hundred only.
(2)	Betel vine,- (i) upto one year,	Rupees five hundred only.
	(ii) above one year and upto two years,	Rupees five hundred only.
	(iii) above two years and upto three years,	Rupees two thousand only.
	(iv) above three years and upto four years,	Rupees two thousand and five hundred only.
	(v) above four years and upto five years,	Rupees three thousand and five hundred only.
	(vi) above five years.	Rupees five thousand and five hundred only.
(3)	Banana plant.	Rupees two hundred and forty only per plant.

(4)	Grafted Mango tree,- (i) upto one year,	Rupees five hundred only.
	(ii) above one year and upto two years,	Rupees one thousand and five hundred only.
	(iii) above two years and upto three years,	Rupees three thousand only.
	(iv) above three years and upto four years,	Rupees five thousand only.
	(v) above four years and upto five years,	Rupees six thousand only.
	(vi) above five years.	Rupees seven thousand only.
(5)	Orange and sweet lime,- (i) upto one year,	Rupees five hundred only.
	(ii) above one year and upto two years,	Rupees one thousand only.
	(iii) above two years and upto three years,	Rupees two thousand and five hundred only.
	(iv) above three years and upto four years,	Rupees three thousand only.
	(v) above four years and upto five years,	Rupees three thousand and five hundred only.
	(vi) above five years.	Rupees four thousand and five hundred only.
(6)	Other fruit trees,- (i) upto one year,	Rupees two hundred only.
	(ii) above one year and upto two years,	Rupees three hundred only.
	(iii) above two years and upto three years,	Rupees five hundred only.
	(iv) above three years and upto four years,	Rupees six hundred only.
	(v) above four years and upto five years,	Rupees seven hundred only.
	(vi) above five years.	Rupees one thousand only.

5. The rate of compensation payable for damage of coconuts caused due to attack of vultures shall be as follows :–

Table

Sr. Nos. **(1)**	**Name of fruit** **(2)**	**Rate of compensation** **(3)**
(1)	Coconut fruit.	Rupees seven per coconut, subject to maximum of rupees four hundred per tree per year. The number of coconut for awarding compensation shall be determined based on the difference of per tree productivity in the last year and actual yield after damage by vulture droppings for the tree where the vulture has made his nest.

6. (1) In case of damage to the farm equipment or other property caused due to attack of wild elephants, the rate of compensation payable shall be as follows :–

Table

Sr. Nos. **(1)**	**Particulars of property** **(2)**	**Rate of compensation** **(3)**
(1)	Farm machinery and equipment.	Amount of damage or rupees five thousand only, whichever is less.
(2)	Bullock cart.	Amount of damage or rupees five thousand only, whichever is less.
(3)	Protective wall and fencing.	Amount of damage or rupees ten thousand only, whichever is less.

(2) In case of damage to the building or house caused due to attack of wild elephants, the rate of compensation payable shall be as follows :–

Table

Sr. Nos. **(1)**	**Particulars of building or house** **(2)**	**Rate of compensation** **(3)**
(1)	House made of tiles or metal sheet or cement sheet roof or cattle shed.	Amount of damage or rupees fifty thousand only, whichever is less.
(2)	Brick or cement slab building.	Amount of damage or amount sanctioned by the Government for housing or rupees one lakh, whichever is less.

By order and in the name of the Governor of Maharashtra,

VIVEK HOSHING,
Deputy Secretary to Government.

ON BEHALF OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATION, PRINTED AND PUBLISHED BY DIRECTOR, RUPENDRA DINESH MORE, PRINTED AT GOVERNMENT CENTRAL PRESS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004 AND PUBLISHED AT DIRECTORATE OF GOVERNMENT PRINTING, STATIONERY AND PUBLICATIONS, 21-A, NETAJI SUBHASH ROAD, CHARNI ROAD, MUMBAI 400 004. EDITOR : DIRECTOR, RUPENDRA DINESH MORE.

RNI No. MAHENG /2009/35528



महाराष्ट्र शासन राजपत्र

असाधारण भाग आठ

वर्ष ९, अंक ४८(४)] सोमवार, ऑगस्ट १४, २०२३/श्रावण २३, शके १९४५ [पृष्ठे ४, किंमत : रुपये २७.००

असाधारण क्रमांक ८८

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (*3*) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Payment of Compensation for Loss, Injury or Damage Caused by Wild Animals Act, 2023 (Mah. Act No. XXXVII of 2023), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

———————————

MAHARASHTRA ACT No. XXXVII OF 2023.

(First published, after having received the assent of the Governor in the "Maharashtra Government Gazette", on the 14th August 2023.)

An Act to make special provisions for payment of compensation for loss of life of, or injury to, humans and cattle and damage to crops and property caused by certain wild animals and for matters connected therewith or incidental thereto.

WHEREAS it is expedient to make special provisions for payment of compensation for loss of life of, or injury to, humans and cattle and damage to crops and property caused by certain wild animals and for matters connected therewith or incidental thereto; it is hereby enacted in the Seventy-fourth Year of the Republic of India, as follows:—

Short title and commencement.

1. *(1)* This Act may be called the Maharashtra Payment of Compensation for Loss, Injury or Damage Caused by Wild Animals Act, 2023.

(2) It shall come into force on such date as the State Government may, by notification in the *Official Gazette*, appoint.

Definitions.

2. *(1)* In this Act, unless the context requires otherwise,—

(a) "cattle" means cow, buffalo, bullock, sheep, goat and includes such other cattle as the State Government may, by notification published in the *Official Gazette*, specify ;

(b) "legal heir" or "successor" means a person, who as per law is entitled to inherit the property of the deceased if he has left any property at the time of his death and also includes any executor or administrator of the deceased ;

(c) "prescribed" means prescribed by rules made under this Act ;

(d) "rules" means the rules made by the State Government under this Act ;

(e) "wild animal" means tiger, leopard, bear, bison, wild pig, jackal, hyena, fox, crocodile, elephant, wild dog, deer, nilgai, monkey and langur and includes such other wild animals as the State Government may, by notification published in the *Official Gazette*, specify.

(2) Words and expressions used in this Act, but not defined hereinabove shall have the same meanings as are assigned to them in the Wildlife (Protection) Act, 1972. 53 of 1972.

Compensation for loss or damages caused due to wild animals.

3. *(1)* The State Government shall pay compensation for any injury to, or loss of life of, humans or cattle or damage to crops or immovable property caused by certain wild animals to the victims or to their legal heirs as per the provisions of this Act.

(2) The State Government shall pay compensation for the following types of injuries or damages caused due to attack of wild animal :—

(a) loss of human life ;

(b) permanent disability to humans ;

(c) major injury to humans ;

(d) loss of cattle life ;

(e) injury to cattle ;

(f) damage to crops, fruit plants ;

(g) damage to property ; or

(h) any other types of injuries or damages as may be prescribed :

Provided that, any loss, injury or damage caused by the accident of vehicle due to crossing of road by wild animal shall not be considered for compensation under clause *(a), (b), (c), (d)* or *(e).*

(3) The rates of compensation payable under this Act shall be such as may be specified by the State Government by notification published in the *Official Gazette.* The State Government may specify different rates of compensation for different types of injuries to humans and cattle or damage to crops, fruit plants and property by different wild animals.

Procedure for payment of compensation.

4. *(1)* An application for the compensation payable under this Act shall be made by such persons to such Authority in such form and manner and within such time, as may be prescribed.

(2) The Authority shall, after receipt of an application for compensation under sub-section *(1),* complete in all respects, make an enquiry in such manner as may be prescribed. The Authority shall, after making an enquiry, forward the application alongwith his report thereon to such Sanctioning Authority, as may be prescribed.

(3) The Sanctioning Authority shall, after considering the application alongwith the documents annexed thereto and the report of the Authority, either sanction the compensation payable under this Act or reject the same, after recording reasons therefor in writing:

Provided that, no application for compensation shall be rejected by the Sanctioning Authority unless an opportunity of hearing is given to the applicant.

(4) The compensation shall be paid to the applicant within a period of thirty days of receipt of the application, complete in all respects. Any delay in any payment of compensation after such thirty days shall be liable for payment of interest on the compensation at such rate as may be prescribed.

Penalty for false claims or false statement.

5. If any person makes any false claim for compensation under this Act or makes any false statement before the concerned authorities under this Act, then he shall be liable for penalty of rupees one thousand. The Sanctioning Authority shall impose and recover the penalty in such cases. The penalty shall be recovered as arrears of land revenue.

Removal of doubt.

6. For the removal of doubts, it is hereby declared that nothing contained in this Act shall apply in respect of claims of compensation made prior to the date of commencement of this Act.

Protection of acts done in good faith.

7. No suit, prosecution or other legal proceedings shall lie against the Government, any officer or the authority of the Government or any person for anything which is done, or intended to be done in good faith under this Act or the rules or orders made thereunder.

Power to make rules.

8. *(1)* The State Government may, by notification in the *Official Gazette*, make rules to carry out the purposes of this Act.

(2) Every rule made under this Act shall be laid, as soon as may be, after it is made, before each House of the State Legislature, while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, and notify such decision in the *Official Gazette*, the rule shall, from the date of such notification, have effect only in such modified form or be of no effect as the case may be; so, however that, any such modification or annulment shall be without prejudice to the validity of anything previously done or omitted to be done under that rule.

Power to remove difficulties.

9. *(1)* If any difficulty arises in giving effect to the provisions of this Act, the State Government may, as occasion arises, by an order published in the *Official Gazette*, do anything not inconsistent with the provisions of this Act, which appears to it to be necessary or expedient for the purposes of removing the difficulty:

Provided that, no such order shall be made after the expiry of the period of two years from the date of commencement of this Act.

(2) Every order made under sub-section *(1)* shall be laid, as soon as may be, after it is made, before each House of the State Legislature.

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